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of the grounds and connections with public utilities, and the Federal heating system) for the use of the United States Court of Appeals for the District of Columbia and the District Court of the United States for the District of Columbia, to be located on that part of reservation 10 which is bounded by Constitution Avenue on the south, C Street on the north, John Marshall Place on the west, and Third Street on the east, containing two hundred and forty-five thousand two hundred and sixty-six square feet, title to which is in the District of Columbia with the exception of two pieces of land having a combined total area of one thousand two hundred and thirty-eight square feet, title to which said two pieces of land is in the United States.

Committee.

SEC. 2. (a) The plans for the building shall be prepared under the direction of, and shall be approved by, a committee of six members to be composed of the chief justice of the United States Court of Appeals for the District of Columbia, the chief justice of the District Court of the United States for the District of Columbia, an associate justice of the District Court of the United States for the District of Columbia to be designated by the chief justice of the United States Court of Appeals for the District of Columbia, a member of the Board of Commissioners of the District of Columbia to be designated by said Board, the Commissioner of Public Buildings, and the Architect of the Capitol.

Estimate and report of cost.

(b) The said committee shall estimate the cost of such building and report its findings to the Congress.

Approval of location and design.

SEC. 3. The exact location of the building on the site shall be approved by the National Capital Park and Planning Commission, and the design shall be approved by the Commission of Fine Arts.

Conveyance of title.

SEC. 4. The Commissioners of the District of Columbia are hereby authorized and directed to convey to the United States title to that part of reservation 10 which is owned by the District of Columbia within the area described in section 1 of this Act, excepting a strip five feet wide immediately adjacent to the south line of C Street and running parallel with said south line of C Street from Third Street to John Marshall Place, said strip to be reserved for the widening of C Street: *Provided*, That the said Commissioners are hereby authorized to continue to lease such land for parking purposes and to receive and use for expenses of the District of Columbia any income derived therefrom, until such time as the use of the land is required by the Federal Government for the new court building. The compensation for the site, which is herein fixed at $2,420,000, shall constitute a credit to the District of Columbia for its share of the cost of the entire project as hereafter established by the Congress.

Lease of land for parking purposes.

Compensation for site.

Expenditures by Architect of Capitol.

SEC. 5. The Architect of the Capitol is hereby authorized to employ the necessary personal and other services, to enter into the necessary contracts, and to make such other expenditures as may be necessary to carry out the provisions of sections 1 and 2 of this Act, and there is hereby authorized to be appropriated a sum not in excess of $400,000 for such purposes, which shall include all architectural fees.

Appropriation authorized.
Post, p. 612.

Approved May 29, 1947.

[CHAPTER 87]

AN ACT

May 31, 1947
[H. R. 236]
[Public Law 81]

To amend the Nationality Act of 1940 so as to permit naturalization proceedings to be had at places other than in the office of the clerk or in open court in the case of sick or physically disabled individuals.

Nationality Act of 1940, amendment.
Proceedings in the case of disabled persons.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That so much of section 331 of the Nationality Act of 1940, as amended (54 Stat. 1153; U. S. C., 1940 edition, title 8, sec. 731), as precedes paragraph (1)

thereof (excluding the heading) is amended to read as follows:

Declaration of intention.

"SEC. 331. An applicant for naturalization shall make, under oath before, and unless prevented by sickness or other physical disability only in the office of, the clerk of court or such clerk's authorized deputy, regardless of the place of residence in the United States of the applicant, not less than two nor more than seven years at least prior to the applicant's petition for naturalization, and after the applicant has reached the age of eighteen years, a signed declaration of intention to become a citizen of the United States, which declaration shall be set forth in writing, in triplicate, and shall contain substantially the following averments by such applicant:".

SEC. 2. Section 332 of the Nationality Act of 1940, as amended (54 Stat. 1154; U. S. C., 1940 edition, title 8, sec. 732), is amended by adding at the end thereof the following new subsection:

Petition for naturalization.

"(e) If the applicant for naturalization is prevented by sickness or other disability from presenting himself in the office of the clerk to make the petition required by subsection (a), such applicant may make such petition at such other place as may be designated by the clerk of court or by such clerk's authorized deputy."

SEC. 3. (a) Section 334 (a) of the Nationality Act of 1940, as amended (54 Stat. 1156; U. S. C., 1940 edition, title 8, sec. 734 (a)), is amended to read as follows:

Final hearings, etc.

"SEC. 334. (a) Except as provided in subsection (b) of this section, every final hearing upon a petition for naturalization shall be had in open court before a judge thereof, and every final order which may be made upon such petition shall be under the hand of the court and entered in full upon a record kept for that purpose, and upon such final hearing of such petition the applicant and the witnesses shall be examined under oath before the court and in the presence of the court."

(b) Section 334 (b) of such Act, as amended (54 Stat. 1156; U. S. C., 1940 edition, title 8, sec. 734 (b)), is amended by adding at the end thereof the following: "If the petitioner is prevented by sickness or other disability from being in open court for the final hearing upon a petition for naturalization, such final hearing may be had before a judge or judges of the court at such place as may be designated by the court."

SEC. 4. Section 335 of such Act, as amended (54 Stat. 1157; U. S. C., title 8, sec. 735), is hereby amended by adding the following new subsection:

Oath of renunciation and allegiance.

"(d) If the petitioner is prevented by sickness or other disability from being in open court the oath prescribed in subsection (a) of this section may be taken before a judge of the court at such place as may be designated by the court."

Determination by court of seriousness of disability.

SEC. 5. Before a declaration of intention or petition for naturalization may be made outside of the office of the clerk of court, or before a final hearing on a petition may be held or the oath of allegiance administered outside of open court, the court must satisfy itself that the illness or other disability is sufficiently serious to prevent appearance in the office of the clerk of court or the court and is of a permanent nature, or of a nature which so incapacitates the person as to prevent him from personally appearing in the office of the clerk of court or in court as otherwise required by law.

Approved May 31, 1947.